

5	Lowther vs. Reyes Coca-Cola Bottling, L.L.C. 2022-01269873	1. Demurrer to Amended Complaint filed by The Coca-Cola Company, Alexandra Brinson on 5/3/23 2. Case Management Conference Defendants Alexandra Brinson and The Coca-Cola Company's (together, "Defendants") unopposed Demurrer to the First Amended Complaint ("FAC") is SUSTAINED without leave to amend. Defendants' request to deem Plaintiff a vexatious litigant is DENIED. I. Demurrer The failure to oppose a demurrer may be construed as having abandoned the claims. <i>See Herzberg v. County of Plumas</i>, 133 Cal. App. 4th 1, 20 (2005) ("Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue"). In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. <i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i>, 78 Cal. App. 4th 562, 566 (2000) ("By failing to argue the contrary, plaintiffs concede this issue"); <i>Westside Center Associates v. Safeway Stores 23, Inc.</i>, 42 Cal. App. 4th 507, 529 (1996) ("failure to address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot"); <i>Glendale Redevelopment Agency v. Parks</i>, 18 Cal. App. 4th 1409, 1424 (1993) (issue is impliedly conceded by failing to address it).
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Here, no opposition to the demurrer has been filed; and therefore, the Court deems the motion unopposed and construes the failure to oppose the demurrer as an abandonment of Plaintiff's claims.

In addition, the demurrer is sustained on the merits. The FAC asserts a single cause of action for defamation. The statute of limitations for filing a defamation claim is one year. *See* Code Civ. Proc. § 340. "[I]n general a cause of action in tort accrues at the time of injury, and a cause of action for defamation accrues at the time the defamatory statement is 'published.'" *Shively v. Bozanich*, 31 Cal. 4th 1230, 1247 (2003), as modified (Dec. 22, 2003). "[T]he general rule is that publication occurs when the defendant communicates the defamatory statement to a person other than the person being defamed." *Id.*

The FAC alleges that Defendant Brinson made false statements on 8/12/20 to the client of Plaintiff's then-employer. *See* FAC p.2. The FAC further alleges that on 8/14/20, the defamatory statement "was passed on," resulting in Plaintiff being terminated from his employment. *Id.* at 3. Thus, the one-year statute of limitation ran on 8/12/21. However, this action was not filed until 7/14/22 (nearly a year late). Further, there are no facts alleged in the FAC to support a delayed discovery argument.

Because it does not appear that Plaintiff can amend to cure the deficiencies in the FAC, the demurrer is sustained without leave to amend.

II. Vexatious Litigant

Defendants also request that Plaintiff be deemed a vexatious litigant. A litigant may be declared “vexatious” where “[a]fter a litigation has been finally determined against the person, [he or she] repeatedly relitigates or attempts to relitigate, in propria persona, either: (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined; or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.” *See* Code Civ. Proc. § 391(b)(2).

Defendants contend that Plaintiff should be deemed a vexatious litigant based on the filing of this action and of a prior action filed in the United States District Court for the Central District of California on 2/11/22. Middleton Decl. ¶ 3. The action was summarily dismissed by the federal court on 2/17/22 for lack of subject matter jurisdiction. *Id.*

The Court declines to deem Plaintiff a vexatious litigant at this time. The purpose of the vexatious litigant statutes is to prevent future harm based on a litigant's past behavior. *See, e.g., Goodrich v. Sierra Vista Reg'l Med. Ctr.*, 246 Cal. App. 4th 1260, 1267 (2016). However, the record does not presently indicate that there is a “past pattern or practice on the part of the [Plaintiff] that carries the risk of repetition in the case at hand.” *Id. citing Holcomb v. U.S. Bank Nat. Assn.*, 129 Cal. App. 4th 1494, 1505 (2005).

		Indeed, Defendants have not provided the court with sufficient information to even determine the extent to which the claims in the prior federal court case overlap with the claims presented herein. Further, to the extent the claims in both actions are the same, this later action was presumably filed simply because the claims could not be heard in federal court. Defendants to give notice.
6	San Bernardino County vs. Marina Point Development Associates 2022-01294089	Motion for Summary Judgment and/or Adjudication filed by San Bernardino County on 4/18/23 Plaintiff San Bernardino County's (the "County") Motion for Summary Judgment or, in the Alternative, Summary Adjudication is DENIED. The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. <i>Aguilar v. Atlantic Richfield Co.</i>, 25 Cal. 4th 826, 849-850 (2001). A Plaintiff has met his or her burden of showing there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Cal. Code Civ. Proc. § 437c(p)(1). Once the Plaintiff has met that burden, the burden shifts to the Defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. <i>Id.</i>